

Gita Sinha vs West Bengal State Electricity ... on 24 March, 2026

Author: Shampa Sarkar

Bench: Shampa Sarkar

Item No.8
24.03.2026
Court. No. 12
GB

MAT 447 of 2026
With
CAN 1 of 2026
With
CAN 2 of 2026

Gita Sinha
Vs.
West Bengal State Electricity Distribution
Company Limited & Ors.

Mr. Abhilash Chatterjee,
Ms. Najmee Parveen

... for the Appellant.

Mr. Mani Sankar Chattopadhyay

... for the WBSEDCL.

Ms. Soma Roy Chowdhuri

... for the Respondent Nos.7 to 10

1. We are not inclined to interfere with the order impugned.

2. Learned advocate for the West Bengal State Electricity Distribution Company Limited submits that at least one document of occupation should be provided to the authority to enable the authority to ascertain and satisfy itself that, the appellant is in occupation of the premises in question. This demand of the electricity department is not unreasonable.

3. The learned Judge had granted liberty to the petitioner to apply for new connection upon compliance of all formalities.

4. The law is well-settled that, occupier of any premises should be granted electricity. The nature of occupation need not be looked into. Even a tenant who has suffered a decree of eviction, but whose appeal is pending, can apply for electricity. But, one thing is clear, only an occupier of the premises can apply for electricity.

5. Under such circumstances, if the appellant has any document to show that the appellant is in occupation of the premises in question, be it a rent receipt or Aadhar Card, his application for supply of electricity shall be processed in accordance with law. The factum of the appellant being in

possession shall also be ascertained by holding an inspection, by WBSEDCL before grant of connection.

6. Accordingly, the appeal and the connected applications are disposed of upon modification of the impugned order.

7. Parties are directed to act on the basis of the server copy of this order.

(Shampa Sarkar, J.) (Ajay Kumar Gupta, J.)